REGULATORY FRAMEWORK GOVERNING MIGRANT WORKERS

MALDIVES

Updated September 2024

International Labour Organization

PRIVATE SECTOR WORKERS *(other than domestic workers)*

DOMESTIC WORKERS

KEY LEGISLATION	**The Employment Act (Law No. 2/2008)**[1] **Regulation on Employment of Expatriates in the Maldives (Regulation No. 2023/R-111)**[2]
RECRUITMENT	
RECRUITMENT FEES	**Employment agencies may charge a fee as agreed upon with employers; however, no fee shall be collected directly or indirectly from any prospective employees.**[3]
PASSPORT CONFISCATION	**Employers are prohibited from confiscating employees' passports or any identification documents.**[4] **Employers found liable for the offense may face imprisonment for a term not exceeding five years.**[5]
WORKING CONDITIONS	
CONTRACT	**There must be a written employment contract between the employee and the employer. The Employment Act outlines the essential details to be included in the contract.**[6] **The following types of employment contracts are permitted:** **(1) contracts for a definite term;** **(2) contracts for an indefinite term; and** **(3) contracts specific to certain work.**[7]

[1] The Employment Act (Law No. 2/2008). Unofficial English translation of the Act is available on the Labour Relations Authority's website link: https://lra.gov.mv/wp-content/uploads/2020/07/Employment-Act-Unofficial-English-Translation.pdf

[2] Regulation on Employment of Expatriates in Maldives (Regulation No. 2023/R-111). A copy of the Act is available on the Labour Relations Authority's website link: https://lra.gov.mv/wp-content/uploads/2021/04/Regulation-on-Employment-of-Expatriates-in-the-Maldives-2023.pdf

[3] The Employment Act (Law No. 2/2008), Section 70

[4] Anti-Human Trafficking Act (Law No. 12/2013), Section 29. Unofficial English translation of the Act is available at: https://antislaverylaw.ac.uk/wp-content/uploads/2019/08/Law-No-12-2013-Prevention-of-Human-Trafficking-Act-Maldives.pdf

[5] Anti-Human Trafficking Act (Law No. 12/2013), Section 29(b)

[6] The Employment Act (Law No. 2/2008), Section 13

[7] The Employment Act (Law No. 2/2008), Section 13

	The employment contract must be signed within 45 (forty-five) days from the date of arrival of the employee to the Maldives.[8] **The employment contract may specify a probation period of up to three months, during which either party may terminate the contract without prior notice.[9]**

[8] Regulation on Employment of Expatriates in Maldives, Section 55

[9] The Employment Act (Law No. 2/2008), Section 14

MINIMUM WAGE	**There is no set minimum wage for migrant workers.**[10]	
WORKING HOURS	**No employee shall be required to work more than 48 hours per week, excluding any overtime worked in accordance with the Employment Act.**[11]	
REST PERIODS	**It is prohibited to work more than 6 consecutive days a week, including days that are normally designated as days off or have been agreed upon as days off, without being granted a minimum of 24 consecutive hours of leave.**[12] **<u>Exceptions:</u>** **The Employment Act permits employment contracts between an employer and employees at tourist resorts, tourist vessels, or uninhabited islands designated for industrial projects to specify that leave entitlement of one day for every six consecutive days worked may be accumulated and taken as one day for every six consecutive days worked.**[13]	
OVERTIME	**Employees shall not be required to work overtime unless it has been stipulated in the employment contract.**[14] **Employees working overtime shall be compensated at 1.25 times their hourly salary for overtime on a normal working day, and 1.5 times their hourly salary for overtime on a Friday or public holiday.**[15]	**Not specified by law**

[10] The minimum wage only applies to Maldivian nationals. Distinct minimum wage rates are established for the public and private sectors. Section 62 (g) of Employment Act provides that the Minister of Economic Development and Trade, with the advice of the Minimum Wage Advisory Board, shall determine and publicly announce the date by which employers must comply Minimum Wage Order for expatriates working in the Maldives, taking into account the country's economic state and national productivity. Unofficial English translation of the Minimum Wage Order is available on the Ministry of Economic Development and Trade's website link: https://trade.gov.mv/wp-content/uploads/2023/05/minimum-wage-order-en-v01.pdf

[11] The Employment Act (Law No. 2/2008), Section 32 (a)

[12] The Employment Act (Law No. 2/2008), Section 32 (b)

[13] The Employment Act (Law No. 2/2008), Section 32 (c)

[14] The Employment Act (Law No. 2/2008), Section 37 (a)

[15] The Employment Act (Law No. 2/2008), Section 37 (b)

	An employee required to work normal hours on a public holiday shall be paid at least an amount equivalent to half of the minimum wage earned on a normal working day, in addition to any applicable overtime compensation[16]	
PAYMENT OF WAGES	Except for temporary employees, all other employees shall be paid at least on a monthly basis.[17] Temporary employees shall be paid on a daily basis, however if both parties agree, payments can be made on a weekly, bi-weekly or monthly basis.[18] Employers have the discretion to grant expatriate Muslim workers a Ramadan allowance.[19]	
ANNUAL LEAVE	Employees are entitled to 30 days of paid annual leave upon completion of one year of employment.[20]	
OSH AND LABOUR ACCOMMODATION	<u>OSH</u> The employer must implement health and safety measures at the workplace at no cost to employees, including: (i) ensuring a safe work environment and maintaining secure tools and machinery; (ii) providing safe work materials; (iii) supplying protective equipment and safety gear where hazards cannot be eliminated; (iv) offering training and information on the use of safety equipment; (v) conducting regular health check-ups for employees exposed to hazardous materials; (vi) arranging appropriate medical care for work-related injuries; and (vii)	<u>Labour Accommodation</u> Accommodation for migrant workers shall be provided by the employer.[23] Accommodation allocated for employees working in Maldives shall provide shelter (except for the purpose of ventilation) from rain and Sun and provide protection from similar natural phenomenon.[24]

[16] The Employment Act (Law No. 2/2008), Section 38

[17] The Employment Act (Law No. 2/2008), Section 50

[18] The Employment Act (Law No. 2/2008), Section 50 (b)

[19] The Employment Act (Law No. 2/2008), Section 51

[20] The Employment Act (Law No. 2/2008), Section 39

[23] Regulation on Employment of Expatriates in Maldives (Regulation No. 2023/R-111), Section 57

[24] Regulation On the General Standards Required in Accommodations Arranged by Employers for their Employees (Regulation No. 2021/R-15), Section 1(a) of Annex. This Regulation sets out the general standards required in places arranged for accommodation by employers for their employees to reside or sleep in and the basic amenities that shall be available in these places for the said purpose.

	facilitating first aid for emergencies.[21] **The Occupational Safety and Health Act 2024 requires enacting and implementing health and safety policy.**[22]	

[21] The Employment Act (Law No. 2/2008), Section 75

[22] Occupational Safety and Health Act (Law No. 2/2024), Section 28. This legislation mandates the safety standards, measures, non-compliance and compensation framework for employers to implement. A copy of the Act is available on the Government Gazette link: https://gazette.gov.mv/gazette/6931.

	Labour Accommodation **Accommodation for migrant workers shall be provided by the employer.[25]** **Accommodation allocated for employees working in Maldives shall provide shelter (except for the purpose of ventilation) from rain and Sun and provide protection from similar natural phenomenon.[26]**	
LEGAL ACCESS TO SOCIAL PROTECTION		
MEDICAL INSURANCE COVERAGE	**Insurance coverage is not specified by law at present.** **However, it is a legal requirement that employees applying for work permits must secure medical insurance coverage from an insurance provider approved by the Ministry of Economic Development and Trade.[27]** **Employers can deduct payments to an insurance fund from the employee's salary.[28]** **Employees are entitled to medical services for workplace injuries, as well as regular medical tests and checkups for those working in hazardous environments or with dangerous chemicals.[29]**	
SICKNESS LEAVE AND PAY	**The employer must grant 30 days of paid sick leave annually. A medical certificate specifying the illness and recommended duration must be submitted upon returning to work.** **However, 15 of these days may be taken without a certificate, provided no single period exceeds 2 consecutive days.[30]**	

[25] Regulation on Employment of Expatriates in Maldives (Regulation No. 2023/R-111), Section 57

[26] Regulation On the General Standards Required in Accommodations Arranged by Employers for their Employees (Regulation No. 2021/R-15), Section 1(a) of Annex. This Regulation sets out the general standards required in places arranged for accommodation by employers for their employees to reside or sleep in and the basic amenities that shall be available in these places for the said purpose.

[27] Regulation on Employment of Expatriates in Maldives (Regulation No. 2023/R-111), Section 14 of Schedule 4

[28] The Employment Act (Law No. 2/2008), Section 55(a)(3)

[29] Occupational Health and Safety Act (Law No. 2/2024), Section 9(a)(b)

[30] The Employment Act (Law No. 2/2008), Section 42

UNEMPLOYMENT BENEFITS	Not specified by law	Not specified by law
EMPLOYMENT INJURY BENEFITS	Employers must arrange medical care for employees injured in the course of employment.[31] If a worker sustains an injury or harm during the course of employment, the employer is required to provide necessary medical treatment and services to ensure the worker's physical and mental well-being, or to supply the resources needed to address the injury, without imposing any additional charges on the worker.[32] In the event that a worker sustains temporary or permanent disability due to an accident or incident related to or caused by their employment, or in the event of the worker's death, the following expenses and compensations shall be provided in accordance with this chapter: (a) the cost of medical treatment for the injury sustained; (b) compensation for lost wages resulting from absence from work for medical treatment; (c) compensation for permanent or temporary disability arising from the injury; and (d) compensation in the event of the worker's death due to the injury. The employer is obligated to provide such compensation and/or damages to the worker or their legal heirs as specified.[33] This provision does not apply to	Employers must arrange medical care for employees injured in the course of employment.[35] If a worker sustains an injury or harm during the course of employment, the employer is required to provide necessary medical treatment and services to ensure the worker's physical and mental well-being, or to supply the resources needed to address the injury, without imposing any additional charges on the worker.[36]

[31] The Employment Act (Law No. 2/2008), Section 75(f)

[32] Occupational Safety and Health Act (Law No. 2/2024), Section 9

[33] Occupational Safety and Health Act (Law No. 2/2024), Section 54, 55

[35] The Employment Act (Law No. 2/2008), Section 75(f)

[36] Occupational Safety and Health Act (Law No. 2/2024), Section 9

	domestic workers.[34]	
OLD-AGE, NATURAL DISABILITY, DEATH AND SURVIVORS' BENEFIT INSURANCE COVERAGE	**No old-age, natural disability, death or survivors' benefits are provided for migrant workers by law.** **Employers must cover the cost of burial in the event of an employee's death.**[37]	
MATERNITY LEAVE AND PROTECTION	**Female employees are entitled to 60 days of maternity leave upon submission of a medical certificate from a licensed medical practitioner, specifying the estimated date of delivery.** **A maximum of 30 days of this leave may be taken before the expected date of delivery. This provision does not preclude the employee from returning to work before the end of the maternity leave.**[38]	

[34] Occupational Safety and Health Act (Law No. 2/2024), Section 53

[37] Regulation on Employment of Expatriates in Maldives (Regulation No. 2023/R-111), Section 63

[38] The Employment Act (Law No. 2/2008), Section 43

FREEDOM OF ASSOCIATION	
ABILITY TO JOIN TRADE UNION	**Employees have the right to register or participate in a workers' union without the need for prior approval. Any individual is eligible to hold positions within the union.[39]**
GRIEVANCES AND DISPUTE RESOLUTION	
LODGING COMPLAINTS/ RESOLVING DISPUTES	**<u>Labor Relations Authority</u>** **The Labour Relations Authority is mandated to ensure compliance with the Employment Act and its regulations by implementing necessary administrative measures and conducting periodic workplace inspections.[40]** **The Authority handles complaints related to non-compliance with employment laws, regulations and employment contracts.** **<u>The Employment Tribunal</u>** **The Employment Tribunal in the Maldives adjudicates disputes between employers and employees related to wrongful dismissal, unfair treatment, and violations of employment laws and contracts.[41]** **As an impartial body, it resolves conflicts and enforces legal rights under employment legislation. The decisions made by the Tribunal can be appealed to the appellate courts[42] and are enforced through the Civil Court of the Maldives.[43]**
SHELTERS AND PROTECTION SERVICES	**Not specified by law**

[39] The Industrial Relations Act (Law No. 1/2024), Section 6

[40] The Employment Act (Law No. 2/2008), Section 79

[41] The Employment Act (Law No. 2/2008), Section 87

[42] The Employment Act (Law No. 2/2008), Section 88

[43] The Civil Procedure Act (Law No. 32/2021), Section 363

SPONSORSHIP	
SPONSORSHIP AND CHANGING EMPLOYERS	**Employees have the right to change their employer.**[44] **However, the procedure specified in the Regulation on Employment of Expatriates in the Maldives must be followed when changing employers.**
TERMINATION, "UNEXPLAINED ABSENCE" /ABSCONDING	**If an employee fails to adhere to work ethics, the employer has the authority to impose appropriate and reasonable disciplinary measures. The employment contract may be terminated either with notice or, in certain circumstances specified in the Act, without notice.**[45] **If an immigrant worker in the Maldives absconds or goes missing, the employer must report the incident to the Maldives Police Service and notify the Ministry via the Xpat system.**[46]
LEAVING THE COUNTRY	**No exit permit is required.**

[44] Regulation on Employment of Expatriates in Maldives (Regulation No. 2023/R-111), Section 21

[45] The Employment Act (Law No. 2/2008), Section 19, Section 23.

[46] Regulation on Employment of Expatriates in Maldives (Regulation No. 2023/R-111), Section 60